



2025/0360(COD)

8.6.2026

DRAFT OPINION

of the Committee on the Internal Market and Consumer Protection

for the Committee on Industry, Research and Energy and the Committee on Civil Liberties, Justice and Home Affairs

on the proposal for a regulation of the European Parliament and of the Council amending Regulations (EU) 2016/679, (EU) 2018/1724, (EU) 2018/1725, (EU) 2023/2854 and Directives 2002/58/EC, (EU) 2022/2555 and (EU) 2022/2557 as regards the simplification of the digital legislative framework, and repealing Regulations (EU) 2018/1807, (EU) 2019/1150, (EU) 2022/868, and Directive (EU) 2019/1024 (Digital Omnibus)

(COM(2025)0837 – C10-0303/2025 – 2025/0360(COD)(COD))

Rapporteur for opinion: Alex Agius Saliba

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SHORT JUSTIFICATION

While supporting the simplification effort that the Commission proposal aims for, the rapporteur has great reservations when it comes to deregulating or undermining European digital rules. The rapporteur for example welcomes simplifying and bringing the Data Governance Act and the Open Data Directive under one overarching European Data Act.

It is less clear how the deregulatory elements of the proposal like for example the repeal of the Platform to Business Regulation or the changes made to the GDPR and the e-privacy Directive will benefit consumers or the functioning of the internal market. For this reason, the draft IMCO opinion on the Digital Omnibus contains several amendments to bring more balance between simplification and consumer protection. However, these are limited to the competences of IMCO. Parts not amended should not be understood as being supported by the rapporteur.

On the Data Act the draft Opinion aims to clarify the definition of data access and strengthen the definitions of data intermediation services. Also, the rapporteur adds the concept of a data expert representative as a specific kind of regulated data intermediation service that can negotiate under a fiduciary duty on behalf of consumers to attain better terms for their data use. The draft opinion also strengthens the safeguards on what kind of organisations are allowed to register as a data intermediation service. An annual transparency report is required for data altruism organisations to bring accountability, competent authorities can monitor compliance on request of individuals or legal persons, and the draft opinion includes a complaint handling mechanism.

To address the issue of trade secrets being misused as an argument to refuse data access and hamper innovation possibilities for SMEs, the rapporteur includes more safeguards and reincludes some provisions that were deleted in the Commission proposal. Regarding Business to Government data sharing, the draft opinion proposes some changes to address concerns by regulators and some stakeholders.

Concerning the cloud switching rules, the rapporteur seeks to restore the current text under the Data Act to foster more competition, avoid lock-in effects that could favour incumbents and allow companies to find ways to circumvent the switching requirements by claiming to have custom-made services. On smart contracts the draft opinion does not take on board the proposed deletion.

The enforcement of the data acquis is essential and therefore the rapporteur proposes amendments to strengthen the supervision and coordination by competent authorities to ensure more harmonisation and consistency across regulations within the EU single market to benefit companies and consumers alike.

Finally, on the Platform to Business Regulation (P2B) the rapporteur considers there would be gaps by repealing the Regulation, even in two stages. The P2B adds value to SMEs on top of what is in the Digital Services Act and the Digital Markets Act, which have a different scope. P2Br should not be repealed without a proper impact assessment on the effects on SMEs and other European businesses.

AMENDMENTS

The Committee on the Internal Market and Consumer Protection submits the following to the Committee on Industry, Research and Energy and the Committee on Civil Liberties, Justice and Home Affairs, as the committees responsible:

Amendment 1

Proposal for a regulation

Recital 3

Text proposed by the Commission

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to *a systematic 'stress test' of the digital rules, along with other Union rules, which might lead to further regulatory adjustments notably following the forthcoming Digital Fitness Check, as well as other targeted evaluations of digital rules, immediate regulatory changes are necessary. Consequently, this Regulation proposes a first set of amendments to the digital legislative framework, aimed at providing immediate regulatory clarifications that stimulate innovation in the Union market, and that cut administrative compliance costs in particular* for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. *The amendments also seek* to provide clarity to individuals.

Amendment

(3) Union digital legislation has evolved incrementally over the past years, in response to the rapidly growing footprint of digital technologies in the Union's economy and societal dynamic, and in view of addressing emerging challenges and promoting business opportunities in the EU. Notwithstanding the Commission's commitment to *its duties a Guardian of the Treaties, to a high level of consumer protection, fundamental rights and freedoms the Commission proposed* regulatory changes *in* this Regulation aimed at providing immediate regulatory clarifications for businesses, while also streamlining supervisory and administrative costs for supervisory authorities and advisory bodies. *This Regulation also seeks to provide clarity to and maintaining the highest standard of protections for* individuals.

Or. en

Amendment 2

Proposal for a regulation Recital 5

Text proposed by the Commission

(5) ***Acknowledging the iterative evolution of horizontal and sector-specific rules, it is*** indispensable to address also overlaps in specific provisions that result in unnecessary duplications ***of administrative burdens***. This is the case in requirements across several rules for reporting following cybersecurity and related incidents, where digital solutions, as proposed in this Regulation, can bring an immediate relief to businesses across all concerned sectors.

Amendment

(5) ***This Regulation found it*** indispensable to address also overlaps in specific provisions that result in unnecessary duplications. This is the case in requirements across several rules for reporting following cybersecurity and related incidents, where digital solutions, as proposed in this Regulation, can bring an immediate relief to businesses across all concerned sectors.

Or. en

Amendment 3

Proposal for a regulation Recital 6

Text proposed by the Commission

(6) ***Similarly, with the iterative regulation of online platforms over the past years, more recent rules have established a clearer and more ambitious framework than some of the predating rules, rendering them obsolete. It is therefore necessary that the legal framework evolves, eliminating any unnecessary duplications that add legal complexity.***

Amendment

deleted

Or. en

Amendment 4

Proposal for a regulation Recital 7

(7) Regulation (EU) 2022/868 of the European Parliament and of the Council⁷ has established rules for intermediary functions in three different settings: (a) functions that support the re-use of protected data held by public sector bodies under controlled conditions; (b) data intermediation services that facilitate data sharing between data subjects, data holders and data users; and (c) data altruism organisations that support the use of data made available by data subjects and data holders on an altruistic or philanthropic basis. Functions supporting the re-use of protected data held by the public sector have a close link with rules of Directive (EU) 2019/1024 of the European Parliament and of the Council⁸. Their interplay has caused confusion namely among public sector bodies. It is thus necessary to merge the two sets of rules. The evaluation of the rules on data intermediation services has shown that the definition of data intermediation service providers *has weaknesses and that the rules are overly stringent for service providers to find a sustainable financial model*. It is thus also necessary to streamline the regime. With respect to data altruism, certain rules of Regulation (EU) 2022/868, notably the obligation on Member States to have national policies on data altruism in place, the establishment of a ‘rulebook’ and developing a European data altruism consent form appear unnecessary regulation, also in light of ongoing work by the European Data Protection Board referred to in Article 68 of Regulation (EU) 2016/679 of the European Parliament and of the Council⁹ on guidance on the processing of personal data in the context of scientific research.

⁷ Regulation (EU) 2022/868 of the European Parliament and of the Council of

(7) Regulation (EU) 2022/868 of the European Parliament and of the Council⁷ has established rules for intermediary functions in three different settings: (a) functions that support the re-use of protected data held by public sector bodies under controlled conditions; (b) data intermediation services that facilitate data sharing between data subjects, data holders and data users; and (c) data altruism organisations that support the use of data made available by data subjects and data holders on an altruistic or philanthropic basis. Functions supporting the re-use of protected data held by the public sector have a close link with rules of Directive (EU) 2019/1024 of the European Parliament and of the Council⁸. Their interplay has caused confusion namely among public sector bodies. It is thus necessary to merge the two sets of rules. The evaluation of the rules on data intermediation services has shown that the definition of data intermediation service providers *and the rules should be improved*. It is thus also necessary to streamline the regime. With respect to data altruism, certain rules of Regulation (EU) 2022/868, notably the obligation on Member States to have national policies on data altruism in place, the establishment of a ‘rulebook’ and developing a European data altruism consent form appear unnecessary regulation, also in light of ongoing work by the European Data Protection Board referred to in Article 68 of Regulation (EU) 2016/679 of the European Parliament and of the Council⁹ on guidance on the processing of personal data in the context of scientific research.

⁷ Regulation (EU) 2022/868 of the European Parliament and of the Council of

30 May 2022 on European data governance and amending Regulation (EU) 2018/1724 (Data Governance Act) (OJ L 152, 3.6.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/868/oj>).

⁸ Directive (EU) 2019/1024 of the European Parliament and of the Council of 20 June 2019 on open data and the re-use of public sector information (OJ L 172, 26.6.2019, p. 56, ELI: <http://data.europa.eu/eli/dir/2019/1024/oj>).

⁹ Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ L 119, 4.5.2016, p. 1, ELI: <http://data.europa.eu/eli/reg/2016/679/oj>).

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⁸ Directive (EU) 2019/1024 of the European Parliament and of the Council of 20 June 2019 on open data and the re-use of public sector information (OJ L 172, 26.6.2019, p. 56, ELI: <http://data.europa.eu/eli/dir/2019/1024/oj>).

⁹ Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ L 119, 4.5.2016, p. 1, ELI: <http://data.europa.eu/eli/reg/2016/679/oj>).

Or. en

Amendment 5

Proposal for a regulation Recital 8

Text proposed by the Commission

(8) While the importance of data intermediation services is recognised in the context of many initiatives supporting data sharing and collaboration, the rules of Regulation (EU) 2022/868 on data intermediation service providers should be clarified. In particular, the definition of such providers should be made more precise. It should eliminate elements that served merely as illustrative examples, rather than exceptions. Moreover, it should address loopholes resulting from ambiguous formulations, notably as regards the notion of ‘closed group’. Services should not be eligible to register as data intermediation services where they

Amendment

(8) While the importance of data intermediation services is recognised in the context of many initiatives supporting data sharing and collaboration, the rules of Regulation (EU) 2022/868 on data intermediation service providers should be clarified. In particular, the definition of such providers should be made more precise. It should eliminate elements that served merely as illustrative examples, rather than exceptions. Moreover, it should address loopholes resulting from ambiguous formulations, notably as regards the notion of ‘closed group’. Services should not be eligible to register as data intermediation services where they

are exclusively used by a closed group of companies and where any extension of that group of companies can only be decided by that group and not the service provider.

More importantly, making this emerging market subject to a compulsory regime has created unnecessary compliance costs. At this stage of market development, a voluntary regime, allowing neutral players to distinguish themselves from other players, appears sufficient. Also, in order to enable sustainable business models, the regime should be made less strict by abolishing the requirement for a legal separation between data

intermediation services and other value-added services that a service should be allowed to offer, replacing it with a functional separation while keeping certain safeguards. The administrative monitoring regime should be simplified. Instead of national and a Union public register for data intermediation services providers and data altruism organisations, there should only be Union public registers, namely one for data intermediation service providers and another for data altruism organisations. Competent authorities overseeing the award of the label and the compliance of the entities with the requirements for obtaining it should be independent in this task. This should be understood to mean that they are legally and functionally independent from a data intermediation service or data altruism organisation, including at the level of their top-management. It should be possible for government organisations to financially support data intermediation services or data altruism organisations, in particular given the emerging nature of these entities, provided that they are legally separate entities. In order to ensure that recognised entities are easily identifiable throughout the Union, the Commission established Implementing Regulation (EU) 2023/1622 on the design of common logos to identify data intermediation services providers and

are exclusively used by a closed group of companies and where any extension of that group of companies can only be decided by that group and not the service provider. ***In addition***, data intermediation services should ***not be provided by very large enterprises***. The administrative monitoring regime should be simplified. Instead of national and a Union public register for data intermediation services providers and data altruism organisations, there should only be Union public registers, namely one for data intermediation service providers and another for data altruism organisations. Competent authorities overseeing the award of the label and the compliance of the entities with the requirements for obtaining it should be independent in this task. This should be understood to mean that they are legally and functionally independent from a data intermediation service or data altruism organisation, including at the level of their top-management. It should be possible for government organisations to financially support data intermediation services or data altruism organisations, in particular given the emerging nature of these entities, provided that they are legally separate entities. In order to ensure that recognised entities are easily identifiable throughout the Union, the Commission established Implementing Regulation (EU) 2023/1622 on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union. on the design of common logos to identify data intermediation services providers and data altruism organisations recognised in the Union.

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Or. en

Amendment 6

Proposal for a regulation Recital 9

Text proposed by the Commission

(9) Regulation (EU) 2023/2854 removes barriers to data access and use, unlocks data-driven innovation and competitiveness, and safeguards *the incentives of those who invest in data technologies*.

Amendment

(9) Regulation (EU) 2023/2854 removes barriers to data access and use, unlocks data-driven innovation and competitiveness, and *provides* safeguards. *Data access should not be interpreted as mere viewing, consultation, or in-situ use where such arrangements prevent users or third parties chosen by them from effectively exercising the rights provided for under Regulation (EU) 2023/2854. Data access should include retrieving data, including by transmission or downloading of data.*

Or. en

Amendment 7

Proposal for a regulation Recital 10

Text proposed by the Commission

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of

Amendment

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of

maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union. ***However, disclosure of trade secrets to third-country entities may increase risks to their integrity and confidentiality where there is exposure to jurisdictions with inadequate protections or difficulties in their actual enforcement, potentially resulting in unauthorised use, economic damage and legal uncertainty.***

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council¹⁰, which sets the standard for protecting trade secrets within the Union.

¹⁰ Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

Or. en

Amendment 8

Proposal for a regulation Recital 11

Text proposed by the Commission

(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable

Amendment

deleted

Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.

Or. en

Amendment 9

Proposal for a regulation Recital 12

Text proposed by the Commission

Amendment

(12) The activation of the refusal mechanism should remain voluntary, and the demonstration done only upon its activation. Data holders should not be required to conduct a full-scale analysis or demonstration of the level of trade secret protection in third countries or by a third country entity as a precondition to be able to substantiate their refusal to sharing data or to disclose trade secrets. In their demonstration, data holders may take into consideration various factors, such as insufficient or inadequate legal standards, poor or arbitrary enforcement, historical infringements, foreign disclosure obligations conflicting with Union law, limited legal recourse or remedies for Union entities, the strategic misuse of procedural tactics to undermine competitors, or undue political influence. Given the diverse range of entities, third countries, and data sharing scenarios involved, data holders should focus their assessment and demonstration on pertinent risks and act accordingly, including by setting appropriate safeguards or activating the refusal

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mechanism. Refusals should be clear, proportionate, and tailored to the specific circumstances of each case, rather than being applied systematically or in a generalized manner across an entire third country.

Or. en

Amendment 10

Proposal for a regulation Recital 13

Text proposed by the Commission

Amendment

(13) An insufficient protection of trade secrets and the challenges in enforcing them in third countries may cause irreparable harm to European businesses. The objective is therefore to strengthen the safeguards for trade secrets by preventing their leakage to natural or legal persons that are established in or subject to jurisdictions posing such risks. This includes Union-based entities controlled by third country entities, who may be acting in bad faith or as fronts for third country entities. Additionally, the objective is to avert direct exposure to third country entities operating within the Union, that are subject to such jurisdictions. Being subject to a third country jurisdiction means the natural or legal person is legally governed, controlled or otherwise bound by the laws or regulatory authority of a third country. Subsidiaries or affiliates of third country parent companies may exploit these jurisdictions to evade or circumvent Union laws. Direct or indirect control refers to the ability to exercise decisive or dominant influence over another entity's management or strategic decisions, whether through ownership of capital or voting rights, financial participation, contractual arrangements, or

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intermediary entities. Control may be exercised directly or through other means, even without majority ownership. Data holders should use best efforts to obtain the relevant information, which may include searches in public registers or requesting it from the user or third party directly, while ensuring it remains appropriately non-intrusive.

Or. en

Amendment 11

Proposal for a regulation Recital 14

Text proposed by the Commission

Amendment

(14) Protecting trade secrets from those vulnerabilities is essential for European industries to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to share data should be limited to justified, exceptional circumstances, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities. This demonstration should be provided in writing without undue delay to the user or third party and proportionate to the case at hand. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent *deleted*

authority, in court, or through dispute settlement bodies.

Or. en

Amendment 12

Proposal for a regulation

Recital 16

Text proposed by the Commission

Amendment

(16) *In order to mitigate legal uncertainties that could discourage innovative business models, it is necessary to address the substantial compliance ambiguities and burdens associated with the provisions on smart contracts executing data sharing agreements under Article 36 of Regulation (EU) 2023/2854. The absence of harmonised standards and clear definitions for key concepts such as ‘robustness’, ‘access control’, and ‘consistency with contractual terms’, combined with the requirement for a ‘safe termination or interruption mechanism’ potentially incompatible with decentralised or public blockchain architectures built on immutable ledgers, posed challenges to innovators from a cost and opportunity perspective. Additionally, the ambiguity surrounding the performance of the conformity assessment under Article 36(2) of that Regulation risks imposing disproportionate burdens. The elimination of Article 36 of Regulation (EU) 2023/2854 would therefore promote the development and market introduction of new business models, foster innovation, and reduce barriers for emerging technologies.*

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Or. en

Amendment 13

Proposal for a regulation

Recital 17

Text proposed by the Commission

Amendment

(17) *Certain data processing services, which do not fall within the Infrastructure as a Service (IaaS) delivery model, are custom-made to the needs or ecosystem of a customer. The provision of such data processing services is based on time-intensive pre-contractual and contractual negotiations to determine the specific requirements of the customer and subsequent technical efforts to customise the data processing service and to deliver a tailored solution. Those are services not provided off-the-shelf and are personalised to the needs of a customer to provide a tailored solution where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer where the majority of features and functionalities would not be usable for a customer without prior adaptation by the provider. Those services differ from custom-built data processing services referred to in Article 31(1) of Regulation (EU) 2023/2854. Custom-built data processing services are services of which the majority of main features has been custom-built to accommodate the specific needs of an individual customer or where those data processing services are not offered at broad commercial scale via the service catalogue of the provider. To avoid additional costs and administrative burden connected to the need to reopen and renegotiate contracts concluded before or on 12 September 2025, it is necessary to clarify that, with the exception of the obligation to reduce and ultimately remove switching and egress charges, custom-made services provided according to contracts concluded before or on 12 September 2025 should*

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not fall within scope of Chapter VI of Regulation (EU) 2023/2854.

Or. en

Amendment 14

Proposal for a regulation Recital 18

Text proposed by the Commission

Amendment

(18) *For reasons relating to financial planning and attracting investment, providers of data processing services, especially SMEs and SMCs, may prefer and offer contracts of a fixed duration. It is necessary to clarify that providers of data processing services may include provisions on proportionate early termination penalties in those contracts as long as they do not constitute an obstacle to switching. In addition, providers of data processing services that are SMEs or SMCs are particularly burdened by the need to align existing contracts for the provision of data processing services to Regulation (EU) 2023/2854. It is therefore necessary to establish a specific regime for those providers if they provide data processing services, other than IaaS, based on contracts concluded before or on 12 September 2025. Taking into account the aim of Regulation (EU) 2023/2854 to enable switching between data processing services and given that switching charges, including egress charges, constitute a serious obstacle to switching, the new lighter regimes for data processing services that are custom-made or are provided by SMEs or SMCs should not undermine the gradual withdrawal of those charges. Contractual provisions running contrary to that objective should be considered to never have existed, if they are included in contractual agreements on the provision of services*

deleted

falling within the scope of those two new specific regimes.

Or. en

Amendment 15

Proposal for a regulation

Recital 25

Text proposed by the Commission

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation **EU** 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

Amendment

(25) Start-ups, small enterprises and enterprises that qualify as medium-sized enterprises under Article 2 of the Annex to Commission Recommendation 2003/361/EC¹³ and enterprises from sectors with less-developed digital capabilities struggle to re-use data and documents. At the same time a few very large entities have emerged with considerable economic power in the digital economy through the accumulation and aggregation of vast volumes of data and the technological infrastructure for monetising them. Those very large enterprises include undertakings that provide core platform services and are designated as gatekeepers under Regulation (EU) 2022/1925 of the European Parliament and of the Council¹⁴ and subject to special obligations to address the imbalances. To address those imbalances and strengthen competition and innovation, public sector bodies should be able to introduce special conditions in licences pertaining to the re-use of data and documents by very large enterprises. Any such conditions should be proportionate, be based on objective criteria, taking into consideration the economic power, the entity's ability to acquire data or the designation as a gatekeeper under Regulation **EU** 2022/1925, other such criteria, where appropriate. Such special conditions may, inter alia, pertain to the charges and fees or the purposes of re-use.

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

¹³ Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36, ELI: <http://data.europa.eu/eli/reco/2003/361/oj>).

¹⁴ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act) (OJ L 265, 12.10.2022, p. 1, ELI: <http://data.europa.eu/eli/reg/2022/1925/oj>).

Or. en

Amendment 16

Proposal for a regulation Recital 26

Text proposed by the Commission

(26) In the spirit of fostering innovation and maintaining fair competition within the Union's digital market, it is imperative to ensure that access to and reuse of public sector data benefit a wide range of market participants and do not inadvertently reinforce existing dominant positions. Very large enterprises, **and in particular** undertakings designated as gatekeepers under Regulation (EU) 2022/1925, hold significant power and influence over the internal market. To prevent such entities from leveraging their substantial means to the detriment of fair competition and innovation, public sector bodies should be able to set out higher charges and fees for the re-use of open government data and protected data. Such higher charges and fees should be proportionate and should be based on objective criteria, taking into consideration the economic power and the entity's ability to acquire data. This

Amendment

(26) In the spirit of fostering innovation and maintaining fair competition within the Union's digital market, it is imperative to ensure that access to and reuse of public sector data benefit a wide range of market participants and do not inadvertently reinforce existing dominant positions. Very large enterprises, **including** undertakings designated as gatekeepers under Regulation (EU) 2022/1925, hold significant power and influence over the internal market. To prevent such entities from leveraging their substantial means to the detriment of fair competition and innovation, public sector bodies should be able to set out higher charges and fees for the re-use of open government data and protected data. Such higher charges and fees should be proportionate and should be based on objective criteria, taking into consideration the economic power and the entity's ability to acquire data. This

measure serves to safeguard opportunities for smaller businesses and new market entrants to innovate and compete in the digital economy.

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Or. en

Amendment 17

Proposal for a regulation Recital 27

Text proposed by the Commission

(27) This Regulation proposes a series of targeted amendments to Regulation (EU) 2016/679 for clarification and simplification, whilst **preserving** the same level of data protection. Article 4 of Regulation (EU) 2016/679 provides that personal data is any information relating to an identified or identifiable natural person. ***In order to determine whether a natural person is identifiable, account should be taken of all the means reasonably likely to be used to identify the natural person directly or indirectly. Taking into account the case-law of the Court of Justice of the European Union concerning the definition of personal data, it is necessary to provide further clarity on when a natural person should be considered to be identifiable. The existence of additional information enabling the data subject to be identified does not, in itself, mean that pseudonymised data must be regarded as constituting, in all cases and for every person or entity, personal data for the purposes of the application of Regulation (EU) 2016/679. In particular, it should be clarified that information is not to be considered personal data for a given entity where that entity does not have means reasonably likely to be used to identify the natural person to whom the information relates. A potential subsequent transmission of that***

Amendment

(27) This Regulation proposes a series of targeted amendments to Regulation (EU) 2016/679 for clarification and simplification, whilst **seeking to preserve** the same **or higher** level of data protection. Article 4 of Regulation (EU) 2016/679 provides that personal data is any information relating to an identified or identifiable natural person **and** should be **interpreted in line with** the case-law of the Court of Justice of the European Union. **Supervisory authorities** within the European Data Protection Board, should **continue supporting** controllers **and processors** in the application of **Regulation (EU) 2016/679 while remaining independent.**

*information to third parties who have means reasonably allowing them to identify the natural person to whom the information relates, such as cross-checking with other data at their disposal, renders that information personal data only for those third parties who have such means at their disposal. An entity for which the information is not personal data, in principle, does not fall within the scope of application of Regulation (EU) 2016/679. In this respect the Court of Justice of the European Union has held that a means of identifying the data subject is not reasonably likely to be used where the risk of identification appears in reality to be insignificant, in that the identification of that data subject is prohibited by law or impossible in practice, for example because it would involve a disproportionate effort in terms of time, cost and labour. An example of a prohibition against reidentification can be found in the obligations of health data users in Article 61(3) of Regulation (EU) 2025/327 of the European Parliament and of the Council¹⁵. The Commission, together with the European Data Protection Board, should **support** controllers in the application of **this updated definition by stipulating technical criteria in an implementing act**.*

¹⁵ Regulation (EU) 2025/327 of the European Parliament and of the Council of 11 February 2025 on the European Health Data Space and amending Directive 2011/24/EU and Regulation (EU) 2024/2847 (OJ L, 2025/327, 5.3.2025, ELI: <http://data.europa.eu/eli/reg/2025/327/oj>)

¹⁵ Regulation (EU) 2025/327 of the European Parliament and of the Council of 11 February 2025 on the European Health Data Space and amending Directive 2011/24/EU and Regulation (EU) 2024/2847 (OJ L, 2025/327, 5.3.2025, ELI: <http://data.europa.eu/eli/reg/2025/327/oj>)

Or. en

Amendment 18

Proposal for a regulation Recital 30

Text proposed by the Commission

Amendment

(30) Trustworthy AI is key in providing for economic growth and supporting innovation with socially beneficial outcomes. The development and use of AI systems and the underlying models such as large language models and generative video models rely on data, including personal data, in various phases in the AI lifecycle, such as the training, testing and validation phase and may in some instances be retained in the AI system or the AI model. The processing of personal data in this context may therefore be carried out for purposes of a legitimate interest within the meaning of Article 6 of Regulation (EU) 2016/679, where appropriate. This does not affect the obligation of the controller to ensure that the development or use (deployment) of AI in a specific context or for specific purposes complies with other Union or national law, or to ensure compliance where its use is explicitly prohibited by law. It also does not affect its obligation to ensure that all other conditions of Article 6(1)(f) of Regulation (EU) 2016/679 as well as all other requirements and principles of that Regulation are met. *deleted*

Or. en

Amendment 19

Proposal for a regulation Recital 31

Text proposed by the Commission

Amendment

(31) When the controller, in the light of the risk-based approach which informs *deleted*

the scalability of the obligations under this Regulation, is balancing the legitimate interest pursued by the controller or a third party and the interests, rights and freedoms of the data subject, consideration should be given to whether the interest pursued by the controller is beneficial for the data subject and society at large, which may for instance be the case where the processing of personal data is necessary for detecting and removing bias, thereby protecting data subjects from discrimination, or where the processing of personal data is aiming at ensuring accurate and safe outputs for a beneficial use, such as to improve accessibility to certain services. Consideration should also, among others, be given to reasonable expectations of the data subject based on their relationship with the controller, appropriate safeguards to minimise the impact on data subjects' rights such as providing enhanced transparency to data subjects, providing an unconditional right to object to the processing of their personal data, respecting technical indications embedded in a service limiting the use of data for AI development by third parties, the use of other state of the art privacy preserving techniques for AI training and appropriate technical measures to effectively minimise risks resulting, for example, from regurgitation, data leakage and other intended or foreseeable actions.

Or. en

Amendment 20

Proposal for a regulation

Recital 33

Text proposed by the Commission

Amendment

(33) The development of certain AI systems and AI models may involve the

deleted

collection of large amounts of data, including personal data and special categories thereof. Special categories of personal data may residually exist in the training, testing or validation data sets or be retained in the AI system or the AI model, although the special categories of personal data are not necessary for the purpose of the processing. In order not to disproportionately hinder the development and operation of AI and taking into account the capabilities of the controller to identify and remove special categories of personal data, derogating from the prohibition on processing special categories of personal data under Article 9(2) of Regulation (EU) 2016/679 should be allowed. The derogation should only apply where the controller has implemented appropriate technical and organisational measures in an effective manner to avoid the processing of those data, takes the appropriate measures during the entire lifecycle of an AI system or AI model and, once it identifies such data, effectively remove them. If removal would require disproportionate effort, notably where the removal of special categories of data memorised in the AI system or AI model would require re-engineering the AI system or AI model, the controller should effectively protect such data from being used to infer outputs, being disclosed or otherwise made available to third parties. This derogation should not apply where the processing of special categories of personal data is necessary for the purpose of the processing. In this case, the controller should rely on the derogations pursuant to Article 9(2)(a) – (j) of Regulation (EU) 2016/679.

Or. en

Amendment 21

Proposal for a regulation Recital 44 – paragraph 3

Text proposed by the Commission

With a view to reducing the compliance burden and providing legal clarity to controllers, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is necessary for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor, such as a market research company, to carry out the processing on its behalf.

Amendment

With a view to reducing the compliance burden and providing legal clarity to controllers **and providers**, and given that certain purposes of processing pose a low risk to the rights and freedoms of data subjects or that such processing may be necessary to provide a service **explicitly** requested by the data subject, it is necessary to define a limitative list of purposes for which the processing should be permitted without consent. As regards storing of personal data, or the gaining of access to personal data already stored, in a terminal equipment, and subsequent processing that is **strictly** necessary **and proportionate** for those purposes, this Regulation should therefore provide that the processing is lawful. The controller, such as a media service provider, may mandate a processor, such as a market research company, to carry out the processing on its behalf.

Or. en

Amendment 22

Proposal for a regulation Recital 44 – paragraph 3 a (new)

Text proposed by the Commission

Amendment

Providers wishing to process aggregated information should anonymise such information immediately. They may mandate a third party to carry out the processing, provided that the latter exclusively process the data solely for the use of the provider. No subsequent processing of information for other

*purposes than those defined in the
limitative list should take place.*

Or. en

Amendment 23

Proposal for a regulation Recital 45

Text proposed by the Commission

(45) Data subjects that have refused a request for consent are often confronted with a new request to give consent each time they visit the same controller's online service again. This may have detrimental effects to the data subjects which may consent just in order to avoid repeating requests. The controller should therefore be obliged to respect the data subject's choices to refuse a request for consent for at least a certain period.

Amendment

(45) Data subjects that have refused a request for consent are often confronted with a new request to give consent each time they visit the same controller's online service again. This may have detrimental effects to the data subjects which may consent just in order to avoid repeating requests. The controller should therefore be obliged to respect the data subject's choices to refuse a request for consent for at least a certain period. ***In addition, gatekeepers designated under Regulation (EU) 2022/1925 should not be allowed to prompt data subjects more than once a year to give consent for the same processing purpose in respect of which they did not give consent or withdrew their consent.***

Or. en

Justification

This amendment is inspired by recital 37 of the Digital Markets Act.

Amendment 24

Proposal for a regulation Recital 46

Text proposed by the Commission

(46) Data subjects should have the

Amendment

(46) Data subjects should have the

possibility to rely on automated and machine-readable indications of their ***choice to consent or refuse a consent request or object to the processing of data***. Such means should follow the state of the art. They can be implemented in the settings of a web browser ***or in the EU Digital Identity Wallet as set out by Regulation (EU) 914/2014***, or any other adequate means. Rules set out in this Regulation should support the emergence of market-driven solutions with appropriate interfaces. The controller should be obliged to respect automated and machine-readable indications of data subject's choices once there are available standards. In light of the importance of independent journalism in a democratic society and in order not to undermine the economic basis for that, ***media service providers should not be obliged to respect the machine-readable indications of data subject's choices***. The obligation for providers of ***web browsers*** to provide the technical means for data subjects to make choices with respect to the processing should not undermine the possibility for media service providers to request consent by data subjects.

possibility to rely on automated and machine-readable indications of their ***choices***. Such means should follow the state of the art. They can be implemented in the settings of ***online interfaces such as of a web browser, a mobile operating system, a mobile application***, or any other adequate means. Rules set out in this Regulation should support the emergence of ***interoperable***, market-driven solutions with appropriate interfaces ***able to guarantee respect of data subject's choices***. The controller should be obliged to respect automated and machine-readable indications of data subject's choices once there are available standards. In light of the importance of independent journalism in a democratic society and in order not to undermine the economic basis for that, the obligation for providers of ***online interfaces*** to provide the technical means for data subjects to make choices with respect to the processing should not undermine the possibility for media service providers to request consent by data subjects. ***Providers of software to access online interfaces should provide automated signals without creating new profiling or tracking layers. Any software to access online interfaces should not make the exercise of choices or rights by the user unduly difficult, including by offering choices to the user in a non-neutral manner, or by coercing, deceiving or manipulating the data subject, or by subverting or impairing the autonomy, decision-making or choices of the data subject, including by means of an online interface or a part thereof. For example software allowing data subjects to manage their options should not highlight or preselect any option nor incite data subjects by other means.***

Or. en

Justification

IMCO has worked extensively on dark patterns influencing consumer choices and behavior.

Amendment inspired on recital 38 of the current Data Act, Regulation (EU) 2023/2854 and is important to tackle consent fatigue.

Amendment 25

Proposal for a regulation Recital 50

Text proposed by the Commission

(50) To ensure the security of the single-entry point, ENISA should take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the single-entry point and the information submitted or disseminated via the single-entry point. When assessing the risk, and the appropriateness and proportionality of those measures, ENISA should take into account the sensitivity of information submitted or disseminated pursuant to the relevant Union legal acts. ENISA should consult competent authorities under the relevant Union legal acts when drafting the technical, operational and organisational measures necessary to establish, maintain and securely operate the single-entry point by making use of existing cooperation groups and networks of Member States established under these acts.

Amendment

(50) To ensure the security of the single-entry point, ENISA should take appropriate and proportionate technical, operational and organisational measures to manage the risks posed to the security of the single-entry point and the information submitted or disseminated via the single-entry point. When assessing the risk, and the appropriateness and proportionality of those measures, ENISA should take into account the sensitivity of information submitted or disseminated pursuant to the relevant Union legal acts. ENISA should consult ***and take utmost account of feedback from*** competent authorities under the relevant Union legal acts when drafting the technical, operational and organisational measures necessary to establish, maintain and securely operate the single-entry point by making use of existing cooperation groups and networks of Member States established under these acts.

Or. en

Amendment 26

Proposal for a regulation Recital 51

Text proposed by the Commission

(51) Before enabling the notification of incidents, ENISA should pilot the

Amendment

(51) Before enabling the notification of incidents, ENISA should pilot the

functioning of the single-entry point which should include a thorough testing of the specificities and requirements for the notifications for the relevant Union legal acts. Based on the results of the piloting, the Commission should assess the proper functioning, reliability, integrity and confidentiality of the single-entry point. The Commission should consult the CSIRTs network and the competent authorities under the relevant Union legal acts, by making use of existing cooperation groups and networks of Member States established under these acts, when carrying out the assessment. Where the Commission finds that the single-entry point ensures the proper functioning, reliability, integrity and confidentiality, it should publish a notice to that effect in the Official Journal of the European Union. In case the Commission considers that the proper functioning, reliability, integrity and confidentiality is not ensured, ENISA should take all necessary corrective measures, followed by a reassessment by the Commission.

functioning of the single-entry point which should include a thorough testing of the specificities and requirements for the notifications for the relevant Union legal acts. Based on the results of the piloting, the Commission should assess the proper functioning, reliability, integrity and confidentiality of the single-entry point. The Commission should consult the CSIRTs network and the competent authorities under the relevant Union legal acts, by making use of existing cooperation groups and networks of Member States established under these acts, when carrying out the assessment. Where the Commission finds that the single-entry point ensures the proper functioning, reliability, integrity and confidentiality, it should publish a notice to that effect in the Official Journal of the European Union. In case the Commission considers that the proper functioning, reliability, integrity and confidentiality is not ensured, ENISA should take all necessary corrective measures *without undue delay*, followed by a reassessment by the Commission *without undue delay*.

Or. en

Amendment 27

Proposal for a regulation Recital 59

Text proposed by the Commission

(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field

Amendment

deleted

for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) 2019/1050 should be repealed. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty, selected definitions in Article 2, the provisions on restrictions and suspensions in Article 4, as well as on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 that are cross-referenced by other legal acts, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article 15 ensuring enforcement, will temporarily remain in application until the original acts are amended.

Or. en

Amendment 28

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a

Regulation (EU) 2023/2854

Article 2 – point 4c

Text proposed by the Commission

Amendment

(4c) ‘access’ means data use, in accordance with specific technical, legal or organisational requirements, without

deleted

necessarily implying the transmission or downloading of data;

Or. en

Justification

This definition can create legal uncertainty and is therefore deleted.

Amendment 29

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point a a (new)

Regulation (EU) 2023/2854

Article 2 – point 10

Text proposed by the Commission

Amendment

(aa) Point (10) is deleted.

Or. en

Justification

Concerning the definition of data intermediation services as the Omnibus introduces the definition in para. 38a.

Amendment 30

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – point 38a – introductory part – point 2 a (new)

Text proposed by the Commission

Amendment

(2a) are not a or are not connected to a very large enterprise, including by being a subsidiary in an undertaking that operates a Very Large Online Platform according to Regulation (EU) 2022/2065 or a Gatekeeper according to Regulation EU 2022/1925.

Or. en

Justification

Limiting the possibility for VLOPs and Gatekeepers to register a data intermediation service.

Amendment 31

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – point 38b

Text proposed by the Commission

(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond compensation related to the costs that they incur where they make their data available for objectives of general interest as provided for in national law, where applicable, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

Amendment

(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond ***fair*** compensation related to the ***actual*** costs that they incur where they make their data available for objectives of general interest as provided for in national law, where applicable, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

Or. en

Amendment 32

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – point 38b a (new)

Text proposed by the Commission

Amendment

(38ba) ‘data expert representative’ means a data intermediation services provider, recognised under this Regulation, which

acts in a fiduciary capacity representing the interests of individuals, who undertakes to act with all due care and transparency in the best interests of one or more such identified individuals, advising those individuals on the processing of their personal data by data controllers within the meaning of Article 4 of Regulation (EU) 2016/679, including the negotiation of such terms when mandated to do so by the individuals in question;

Or. en

Amendment 33

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – point 38b b (new)

Text proposed by the Commission

Amendment

(38bb) ‘collective negotiation’ means the negotiation by a data expert representative, acting on the basis of an aggregated mandate from a defined or ascertainable group of individuals in their best interest, with one or more data controllers, of the standard terms governing the processing of those individuals' personal data, with a view to those terms being applied uniformly to all individuals covered by that mandate ;

Or. en

Amendment 34

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

Article 2 – point 38b c (new)

Text proposed by the Commission

Amendment

(38bc) ‘machine-readable negotiated terms’ means a set of terms governing the processing of personal data, agreed between a data expert representative and a data controller in the course of collective negotiation, expressed in a format that allows automated communication, verification and enforcement between the data controller's systems and the data expert representative's systems.’

Or. en

Amendment 35

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – point 47

Text proposed by the Commission

Amendment

(47) ‘standard licence’ means a set of predefined re-use conditions in a digital format, preferably compatible with standardised public licences available online;

(47) ‘standard **digital** licence’ means a set of predefined re-use conditions in a digital format, preferably compatible with standardised public licences available online;

Or. en

Amendment 36

Proposal for a regulation

Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – point 59

Text proposed by the Commission

Amendment

(59) ‘reasonable return on investment’ means a percentage of the overall charge,

deleted

in addition to the amount needed to recover the eligible costs, not exceeding 5 percentage points above the fixed interest rate of the ECB;

Or. en

Amendment 37

Proposal for a regulation

Article 1 – paragraph 1 – point 3 – introductory part

Regulation (EU) 2023/2854

Article 4

Text proposed by the Commission

3. in Article 4, ***paragraph 8 is replaced by*** the following:

Amendment

3. in Article 4, the following ***paragraphs are added after paragraph 8:***

Or. en

Amendment 38

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8

Text proposed by the Commission

8. ***In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent***

Amendment

deleted

protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Or. en

Amendment 39

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8 a (new)

Text proposed by the Commission

Amendment

8a. The data holder shall not rely on this Article to refuse data access on the basis of generalised assumptions concerning a third country, ownership structure, technology provider, or category of recipient. The data holder shall not engage in any behaviour that undermines effective compliance with the data access obligations under this Regulation regardless of whether that behaviour is of a contractual, commercial or technical nature, or of any other nature, or consists in the use of behavioural techniques or interface design.

Or. en

Justification

Additional safeguard for effective compliance inspired on art 13 para 4 of the Digital Markets Act.

Amendment 40

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8 b (new)

Text proposed by the Commission

Amendment

8b. Before refusing access under paragraph 8, the data holder shall assess whether the identified risk can be effectively addressed through proportionate technical, organisational, contractual, or secure-access measures, including access in a secure processing environment, partial access, aggregation, confidentiality commitments, or other safeguards that enable the user to exercise the rights provided for in this Regulation. Refusal shall be used only where such measures would be insufficient to address a duly substantiated and specific risk.

Or. en

Amendment 41

Proposal for a regulation

Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8 c (new)

Text proposed by the Commission

Amendment

8c. The review of the data holder's refusal to provide data access by the competent authority designated pursuant to Article 37 referred to in paragraph 8 shall be available through an expedited

procedure which shall not be later than a month in complex cases. The competent authority shall assess the necessity, proportionality, evidence and non-discriminatory nature of the refusal.

Or. en

Amendment 42

Proposal for a regulation

Article 1 – paragraph 1 – point 4 – introductory part

Regulation (EU) 2023/2854

Article 5 – paragraph 11

Text proposed by the Commission

4. in Article 5, *paragraph 11 is replaced by* the following:

Amendment

4. in Article 5, the following *paragraph is inserted*:

Or. en

Amendment 43

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 5 – paragraph 11

Text proposed by the Commission

11. In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which

Amendment

deleted

are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.;

Or. en

Amendment 44

Proposal for a regulation

Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

Article 5 – paragraph 11 a (new)

Text proposed by the Commission

Amendment

11a. The Commission shall issue guidance in consultation with the European Data Protection Board (EDPB) and the European Data Innovation Board (EDIB) on how a data holder can demonstrate the probability of damage due to the disclosure of trade secrets.

Or. en

Amendment 45

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Text proposed by the Commission

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, **mitigating**, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Amendment

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Or. en

Justification

In line with the EDPB - EDPS opinion paragraph 125.

Amendment 46

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15a – paragraph 2

Text proposed by the Commission

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent

Amendment

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent

conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to **address** the public emergency, personal data may also be requested and, **where possible**, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to **respond to** the public emergency, personal data may also be requested and, made available in pseudonymized form, subject to appropriate technical and organisational measures to ensure their protection.

Or. en

Justification

Following the EDPB-EDPS opinion para 122-124.

Amendment 47

Proposal for a regulation

Article 1 – paragraph 1 – point 7

Regulation (EU) 2023/2854

Article 15a – paragraph 3

Text proposed by the Commission

Amendment

3. Where the data requested are necessary to mitigate or support the recovery from a public emergency, a requesting body pursuant to paragraph 1 acting on the basis of Union or national law, may request specific non-personal data, the lack of which prevent it from mitigating or supporting the recovery from a public emergency. Such requests shall not be made to microenterprises and small enterprises.;

deleted

Or. en

Amendment 48

Proposal for a regulation

Article 1 – paragraph 1 – point 9 – point b – point i

Regulation (EU) 2023/2854

Article 17 – paragraph 2 – point c

Text proposed by the Commission

Amendment

(c) be proportionate to the public emergency and duly justified, regarding the granularity and volume of the data requested and the frequency of access to the data requested;;

(c) be proportionate to ***the exceptional needs of*** the public emergency and duly justified, regarding the granularity and volume of the data requested and the frequency of access to the data requested;;

Or. en

Amendment 49

Proposal for a regulation

Article 1 – paragraph 1 – point 9 – point b – point ii

Regulation (EU) 2023/2854

Article 17 – paragraph 2 – point e

Text proposed by the Commission

Amendment

(ii) ***point (e) is deleted.***;

deleted

Or. en

Justification

Following the advice of the EDPB-EDPS joint opinion paragraphs 122-124.

Amendment 50

Proposal for a regulation

Article 1 – paragraph 1 – point 10 – point -a (new)

Regulation (EU) 2023/2854

Article 18 – paragraph 1

Present text

Amendment

1. A data holder receiving a request to make data available under this Chapter shall make the data available to the requesting public sector body, the Commission, the European Central Bank or a Union body without undue delay,

(-a) paragraph 1 is replaced by the following:

‘1. A data holder receiving a request to make data available under this Chapter shall make the data available to the requesting public sector body, the Commission, the European Central Bank or a Union body without undue delay, ***and***

taking into account necessary technical, organisational and legal measures.

shall implement the necessary technical, organisational and legal measures to implement data protection principles and to protect personal data and safeguard the rights and freedoms of data subjects.’

Or. en

Justification

In line with the advice in the joint EDPB-EDPS Joint Opinion, paras. 126-127 to specify the data holders must implement the technical, organisational and legal measures requested, not just take them into account’. This would also be in line with Articles 17(1)(g) and 19(1)(b).

Amendment 51

Proposal for a regulation

Article 1 – paragraph 1 – point 10 – point a

Regulation (EU) 2023/2854

Article 18 – paragraph 2

Text proposed by the Commission

2. Without prejudice to specific needs regarding the availability of data defined in Union or national law, a data holder may decline or seek the modification of a request to make data available under this Chapter without undue delay and, in any event, no later than five working days after the receipt of a request pursuant to Article 15a(2) ***and without undue delay and, in any event, no later than 30 working days after the receipt of a request pursuant to Article 15a(3)***, on any of the following grounds;;

Amendment

2. Without prejudice to specific needs regarding the availability of data defined in Union or national law, a data holder may decline or seek the modification of a request to make data available under this Chapter without undue delay and, in any event, no later than five working days after the receipt of a request pursuant to Article 15a(2), on any of the following grounds;;

Or. en

Amendment 52

Proposal for a regulation

Article 1 – paragraph 1 – point 12

Regulation (EU) 2023/2854

Article 20 – paragraph 2

Text proposed by the Commission

Amendment

2. The data holder shall be entitled to fair compensation for making data available in compliance with a request made pursuant to Article 15a(3). Such compensation shall cover the technical and organisational costs incurred to comply with the request including, where applicable, the costs of anonymisation, pseudonymisation, aggregation and of technical adaptation, and a reasonable margin. Upon request of the public sector body, the Commission, the European Central Bank or the Union body, the data holder shall provide information on the basis for the calculation of the costs and the reasonable margin.

deleted

Or. en

Amendment 53

Proposal for a regulation

Article 1 – paragraph 1 – point 12

Regulation (EU) 2023/2854

Article 20 – paragraph 4

Text proposed by the Commission

Amendment

4. Data holders shall not be entitled to compensation for making data available in compliance with a request made pursuant to Article 15a(3), where the specific task carried out in the public interest is the production of official statistics and where the purchase of data is not allowed by national law. Member States shall notify the Commission where the purchase of data for the production of official statistics is not allowed by national law.;

4. By way of derogation from paragraph 3 of this Article, a data holder that is a microenterprise or small enterprise shall not be entitled to compensation for making data available in compliance with a request made pursuant to Article 15a(2), where the specific task carried out in the public interest is the production of official statistics and where the purchase of data is not allowed by national law. Member States shall notify the Commission where the purchase of data for the production of official statistics is not allowed by national law.;

Or. en

Amendment 54

Proposal for a regulation

Article 1 – paragraph 1 – point 14

Regulation (EU) 2023/2854

Article 22a – paragraph 1

Text proposed by the Commission

Where a dispute arises concerning a request for data under Article 15a, including its refusal, modification, the level of compensation, or the transmission or making available of data, the data holder, the public sector body, the Commission, the European Central Bank or the Union body may lodge a complaint with the competent authority, designated pursuant to Article 37, of the Member State where the data holder is established.;

Amendment

Without prejudice to Article 38, where a dispute arises concerning a request for data under Article 15a, including its refusal, modification, the level of compensation, or the transmission or making available of data, the data holder, the public sector body, the Commission, the European Central Bank or the Union body may lodge a complaint with the competent authority, designated pursuant to Article 37, of the Member State where the data holder is established.;

Or. en

Justification

Included to address the concerns raised in EDPB-EDPS joint opinion paragraph 158.

Amendment 55

Proposal for a regulation

Article 1 – paragraph 1 – point 15

Regulation (EU) 2023/2854

Article 31

Text proposed by the Commission

15. in Article 31, the following paragraphs 1a and 1b are inserted:

‘1a. The obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), where the majority of features and functionalities of

Amendment

deleted

the data processing service has been adapted by the provider to the specific needs of the customer, if the provision of such services is based on a contract concluded before or on 12 September 2025.

The provider of such data processing services shall not be required to renegotiate or amend a contract for the provision of those services before its expiry if that contract was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.

1b. A provider of a data processing service may include provisions on proportionate early termination penalties in a contract of fixed duration on the provision of data processing services other than those referred to in Article 30(1).

Where the provider of data processing service is a small and medium-sized enterprise or a small mid-cap, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), if the provision of such services is based on a contract concluded before or on 12 September 2025.

Where the provider of a data processing service is a small and medium-sized enterprise or a small mid-cap, the provider shall not be required to renegotiate or amend a contract for the provision of a data processing service other than those referred to in Article 30(1) before its expiry 1 if that contract was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.;

Or. en

Justification

Deletion of amendments to art. 31 comes from the concern that the exemptions risk creating more lock-in effects, favor incumbents and allow companies to find ways to circumvent the switching requirements e.g. by claiming to have custom-made services as further described in recital 17 to avoid obligations. The temporal exemption for contracts up to 12 September 2025 further add complexity by creating a long-lasting dual regime, risks weakening interoperability incentives and leading to fragmentation. Article 31(1) of the current Data Act already catered for data processing services which concern services of which the majority of main features has been custom-built. Recital 98 of the current Data Act inferred more flexibility, and the Digital Omnibus amendments to article 31 go beyond the careful balance found under that recital and current chapter VI of the Data Act and its objectives to facilitate switching of data processing services.

Amendment 56

Proposal for a regulation

Article 1 – paragraph 1 – point 17

Regulation (EU) 2023/2854

Article 36

Text proposed by the Commission

Amendment

17. Article 36 is deleted.

deleted

Or. en

Amendment 57

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Chapter VIIa – title

Text proposed by the Commission

Amendment

DATA INTERMEDIATION SERVICES
AND DATA ALTRUISM
ORGANISATIONS’

DATA INTERMEDIATION SERVICES,
DATA EXPERT REPRESENTATIVES
AND DATA ALTRUISM
ORGANISATIONS

Or. en

Amendment 58

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32a – paragraph 4

Text proposed by the Commission

(4) In order to ensure that data intermediation services providers recognised in the Union are easily identifiable throughout the Union, the Commission is empowered to adopt implementing acts establishing a design for the common logo. Those implementing acts shall be adopted in accordance with the advisory procedure referred to in Article 46(1a).

Amendment

(4) In order to ensure that data intermediation services providers recognised in the Union are easily identifiable throughout the Union, the Commission is empowered to adopt implementing acts establishing a design for the common logo **and a common template with a checklist of requirements for organisations that wish to register as data intermediation service provider**. Those implementing acts shall be adopted in accordance with the advisory procedure referred to in Article 46(1a).

Or. en

Justification

A template and more information on the requirements could promote the creation of data intermediation services and will help guide organisations in setting up as a recognised entity.

Amendment 59

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – introductory part

Text proposed by the Commission

(d) where data intermediation service providers **which are not micro and small sized enterprises** offer value-added services to their clients other than the services referred to in point (c), they fulfil the following conditions:

Amendment

(d) where data intermediation service providers offer value-added services to their clients other than the services referred to in point (c), they fulfil the following conditions:

Or. en

Justification

In line with the EDPB-EDPS joint opinion, paragraph 138.

Amendment 60

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – point iii

Text proposed by the Commission

(iii) the value-added services are offered through a **functionally** separate entity;

Amendment

(iii) the value-added services are offered through a separate entity **that is legally, organisationally and operationally separate from the data intermediation service provider**;

Or. en

Justification

In line with the EDPB-EDPS opinion paragraph 135.

Amendment 61

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – point iv.

Text proposed by the Commission

(iv) the undertaking seeking to offer the value-added services is not designated as a gatekeeper pursuant to Article 3 of Regulation (EU) 2022/1925;

Amendment

(iv) the undertaking seeking to offer the value-added services is not designated as a **Very Large Online Platform pursuant to Article 33 of Regulation (EU) 2022/1925 or as a** gatekeeper pursuant to Article 3 of Regulation (EU) 2022/1925;

Or. en

Amendment 62

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e

Text proposed by the Commission

(e) the data intermediation services provider offering services to data subjects acts in the data subjects' best interest where it facilitates the exercise of their rights, in particular by informing and, where appropriate, advising data subjects in a concise, transparent, intelligible and easily accessible manner about intended data uses by data users and standard terms and conditions attached to such uses before data subjects give consent.

Amendment

(e) the data intermediation services provider offering services to data subjects acts in the data subjects' best interest where it facilitates the exercise of their rights, in particular by informing and, where appropriate, advising data subjects in a concise, transparent, intelligible and easily accessible manner about intended data uses by data users and standard terms and conditions attached to such uses before data subjects give consent. ***Data intermediation service providers shall not use data made available through their services for advertising, profiling, ranking, price discrimination, training of AI systems or any purpose other than putting those data at the disposal of data users in accordance with the instructions of the data holder or data subject.***

Or. en

Amendment 63

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e a (new)

Text proposed by the Commission

Amendment

(ea) The data intermediation services provider ensures that the procedure for access to its service is fair, transparent and non-discriminatory for both data subjects and data holders, as well as for data users, including with regard to prices and terms of service;

Amendment 64

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e b (new)

Text proposed by the Commission

Amendment

(eb) The data intermediation services provider maintains a log record of the data intermediation activity;

Or. en

Amendment 65

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e c (new)

Text proposed by the Commission

Amendment

(ec) The data intermediation services provider takes the necessary technical, organisational measures to ensure an appropriate level of security for the storage, processing and transmission of non-personal data;

Or. en

Amendment 66

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e d (new)

Text proposed by the Commission

Amendment

(ed) The data intermediation services provider shall have procedures in place to prevent fraudulent or abusive practices in relation to parties seeking access through its data intermediation services;

Or. en

Amendment 67

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e e (new)

Text proposed by the Commission

Amendment

(ee) the data intermediation services provider shall, in the event of its insolvency, ensure a reasonable continuity of the provision of its data intermediation services and, where such data intermediation services ensure the storage of data, shall have mechanisms in place to allow data holders and data users to obtain access to, to transfer or to retrieve their data and, where such data intermediation services are provided between data subjects and data users, to allow data subjects to exercise their rights.

Or. en

Amendment 68

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e – paragraph 1 – subparagraph 1

Text proposed by the Commission

(1) Data intermediation services provider which meets the requirements set out in Article 32c **may** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Amendment

(1) **A** data intermediation services provider which meets the requirements set out in Article 32c **shall** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Or. en

Amendment 69

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e – paragraph 1 – subparagraph 2

Text proposed by the Commission

Data altruism organisation which meets the requirements set out in Article 32d **may** submit an application for registration in the public Union register of recognised data altruism organisations to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Amendment

Data altruism organisation which meets the requirements set out in Article 32d **shall** submit an application for registration in the public Union register of recognised data altruism organisations to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Or. en

Amendment 70

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e – paragraph 2 – subparagraph 1

Text proposed by the Commission

(2) Data intermediation services

Amendment

(2) Data intermediation services

providers and data altruism organisations *that have no* main establishment in the Union *shall designate a legal representative in one of the Member States. The legal representative shall be mandated to be addressed in addition to or instead of the data intermediation services provider or data altruism organisation by competent authorities or data subjects and data holders. The legal representative* shall cooperate with and comprehensively demonstrate to the competent authority, upon request, the actions taken and provisions put in place by the data intermediation services provider or the data altruism organisation to ensure compliance with this Regulation.

providers and data altruism organisations *shall have their* main establishment in the Union *and* shall cooperate with and comprehensively demonstrate to the competent authority, upon request, the actions taken and provisions put in place by the data intermediation services provider or the data altruism organisation to ensure compliance with this Regulation.

Or. en

Justification

This amendment is meant to assure that registered data intermediation services and data altruism organisations have their main establishment in the EU.

Amendment 71

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e – paragraph 2 – subparagraph 1

Text proposed by the Commission

Amendment

The data intermediation services provider or data altruism organisation shall be deemed to be under the jurisdiction of the Member State in which the legal representative is located. The designation of a legal representative shall be without prejudice to any legal actions which could be initiated against the data intermediation services provider or data altruism organisation.

deleted

Or. en

Amendment 72

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e – paragraph 3

Text proposed by the Commission

(3) **Competent authorities** shall **establish the necessary application forms.**

Amendment

(3) **To ensure consistency and coherence across the EU, the Commission shall, after consulting the EDPB, adopt implementing acts establishing a template application form for the registration of data intermediation services and recognised data altruism organisations, including inter alia a description of the intended processing and other activities, their nature and scope; type of data concerned and any intended value-added services related to the processing of the data**

Or. en

Amendment 73

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e a (new)

Text proposed by the Commission

Amendment

Article 32ea

Recognition of Data Expert Representatives

1. A data intermediation services provider registered in the public Union register referred to in Article 32a(1), point (a), of this Regulation may apply to the competent authority designated under Article 32b for additional recognition as a data expert representative.

2. The competent authority shall recognise data intermediation services provider as a data expert representative where it demonstrates that:

(a) it is institutionally and functionally independent of any data controller, processor or data altruism organisation whose data-processing terms it would negotiate or assess;

(b) it has access to the legal, technical and economic expertise necessary to advise data holders on the processing of their data and to negotiate the terms of such processing on their behalf;

(c) it has adopted internal rules, made publicly available, which govern the avoidance and management of conflicts of interest, the continuing professional education of its personnel, and the distinct separation of any remuneration received from third parties from the assets and instructions of the individuals it represents;

(d) it has subscribed to professional indemnity insurance or an equivalent guarantee proportionate to the scale of its activities; and

(e) it has accepted, in writing, the fiduciary duties set out in Article 32ed.

(f) it is not an undertaking designated as a gatekeeper pursuant Regulation (EU) 2022/1925 or an entity affiliated with such a gatekeeper within the meaning of that Regulation nor an undertaking that operates a Very Large Online Platform or a Very Large Online Search Engine designated under Regulation (EU) 2022/2065 or an entity affiliated with such a Very Large Online Platform or Very Large Online Search Engine.

3. The Commission shall, by means of delegated acts adopted pursuant to Article 45, establish mandatory minimum requirements covering disclosure obligations, transparency standards, fiduciary conduct, conflicts of interest

management, and interoperability applicable to expert representatives. Those requirements shall be reviewed at least every three years following consultation with the European Data Innovation Board.

4. The act of recognition under this Article shall be subject to a yearly review by the relevant competent authority, and may be suspended or withdrawn where the conditions set out in paragraph 2 cease to be met or where the expert representative has materially breached its fiduciary duties.

5. The Commission shall maintain a public Union register of recognised expert representatives, as part of the register referred to in Article 32a(1), point (a).

6. Competent authorities under Regulation (EU) 2023/2854 and, concerning the processing of personal data, supervisory authorities under Regulation (EU) 2017/679, shall conduct unannounced audits on data controllers and may request from any data controller the documentation necessary to demonstrate compliance with the provisions set out in this Chapter.

Or. en

Justification

To allow for data subjects to better control and their data use and negotiate better terms for their data use, we include a specific kind of data intermediation service, being the Data Expert Representative, that can register in the public Union register. This expert works under fiduciary duties to act, represent and advise the data subjects, to collectively negotiate better terms for the data subjects. This approach can be a good addition to the new art 88b of the GDPR as it empowers data subjects and can help improve the conditions of their data use.

Amendment 74

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e b (new)

Article 32eb

Collective negotiation in good faith

1. Where a data expert representative recognised approaches a data controller to negotiate the terms under which personal data shall be processed for a defined or ascertainable group of data holders, the data controller is under an obligation to engage in good faith upon being notified of the mandate to negotiate.

2. The obligation to negotiate in good faith does not impose a legal obligation upon the data controller to reach an agreement, and is without prejudice to its freedom to determine the terms, scope or other essential parameters of the services that it provides. It does, however, require the data controller to respond in good faith to proposals advanced by the data expert representative, to make available the information reasonably necessary to permit an informed negotiation, subject to the protection of trade secrets in accordance with Directive (EU) 2016/943 and Articles 4(8) and 5(11) of this Regulation, and to refrain from engaging in conduct that would subvert the course of those negotiations.

3. Where negotiations have been ongoing for a period of four months and have not resulted in an agreement, either party may refer the matter to non-binding mediation before the competent authority designated under Article 32b or before a body designated by it for this purpose. Where mediation has not resulted in agreement within a further period of two months, either party may refer the matter to binding arbitration, which shall be conducted on a 'final-offer' basis unless the parties agree otherwise.

4. This Article does not apply to micro-enterprises or small enterprises within the meaning of Article 2 of the Annex to

Recommendation 2003/361/EC.

5. Member States shall ensure that breaches of the obligation in paragraph 1 are subject to effective, proportionate and dissuasive sanctions, in accordance with Article 40 of this Regulation.

6. Where terms have been negotiated between a data controller and an data expert representative acting pursuant to a valid mandate, those terms shall give rise to a rebuttable presumption that the best interests of the data holders represented have been respected in the processing of their personal and shall be made available by the data controller as machine-readable negotiated terms.

Or. en

Justification

To allow for data subjects to better control and their data use and negotiate better terms for their data use, we include a specific kind of data intermediation service, being the Data Expert Representative, that can register in the public Union register. This expert works under fiduciary duties to act, represent and advise the data subjects, to collectively negotiate better terms for the data subjects. This approach can be a good addition to the new art 88b of the GDPR as it empowers data subjects and can help improve the conditions of their data use.

Amendment 75

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e c (new)

Text proposed by the Commission

Amendment

Article 32ec

Fiduciary duties of data expert representatives

1. A data expert representative shall act, in the exercise of its functions under this Article, in the best interests of each individual it represents, with the due diligence reasonably to be expected of a

professional in the field, and in accordance with the principles set forth in this Article.

2. The duty of loyalty requires the data expert representative to avoid any conflict of interest with the individuals which it represents and its own commercial interests or those of any third party. Where such a conflict is unavoidable, the data expert representative shall make full disclosure in writing, in clear and intelligible terms to the individuals concerned and shall not act in respect of the matter giving rise to the conflict without their consent pursuant to Article 4(11) of Regulation (EU) 2016/679.

3. The duty of care requires the data expert representative to inform itself of the practices, terms and consequences of the data processing activities on which it advises or negotiates, and to apply professional judgement in the formulation of its advice and in the conduct of negotiations.

4. The duty of transparency requires the data expert representative to disclose to each individual it represents, in clear and intelligible terms, the basis of its proposed remuneration, the identity of the data controllers with which it has negotiated terms applicable to that individual, the categories of personal data covered by those terms, and any material limitation on the scope of its advice or representation.

5. The fiduciary duties laid down in this Article are without prejudice to any obligations to which a data expert representative might be subject as a data controller or processor under Regulation (EU) 2016/679 or under any other applicable Union or national law.

Or. en

Justification

To allow for data subjects to better control and their data use and negotiate better terms for their data use, we include a specific kind of data intermediation service, being the Data Expert Representative, that can register in the public Union register. This expert works under fiduciary duties to act, represent and advise the data subjects, to collectively negotiate better terms for the data subjects. This approach can be a good addition to the new art 88b of the GDPR as it empowers data subjects and can help improve the conditions of their data use.

Amendment 76

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32e d (new)

Text proposed by the Commission

Amendment

Article 32ed

Mandate and authority of data expert representatives

1. The relationship between a data expert representative and a data holder whom it represents shall be governed by a written mandate expressed in plain and intelligible language, which sets out at a minimum:

(a) the categories of personal data and the categories of data controllers to which the mandate applies;

(b) whether the mandate extends to advice only, or also to the ability to negotiate on behalf of the individual being represented;

(c) the duration of the mandate and the conditions of its revocation, which shall be exercisable by the individual at any time during the course of the mandate, free of charge and by readily accessible means;

(d) the remuneration of the expert representative, according to a formula which reflects a cost-based remuneration model approved in a Commission

delegated act; and

(e) the mechanisms for lodging and resolution of complaints by affected individuals.

2. The grant of consent within the meaning of Article 4, point (11) of Regulation (EU) 2016/679 by an expert representative on behalf of an individual shall be considered to be valid when they act pursuant to the terms of their mandate and where the individual retains the capacity at all times to withdraw that consent. An individual's direct expression of consent shall prevail over a contrary indication communicated by the expert representative.

Terms negotiated by an expert representative on behalf of an individual pursuant to a valid mandate shall be recognised as sufficient to satisfy the requirements for lawful processing under Regulation (EU) 2016/679, including where those terms establish or modify the conditions of consent, legitimate interest, or contractual agreement as the applicable legal basis.

Prior to the entry into force of the new terms negotiated by the data expert representative, the data holder shall be informed of the specific consent given and shall be afforded a reasonable opportunity to exercise their right to withdraw or confirm their acceptance of the terms as negotiated. Such confirmation may be expressed by accepting updated data processing terms on their terminal equipment or before a new use of the service

In all cases, the right of a data holder to negotiate the terms governing the processing of their personal data with the support of an data expert representative shall not be restricted, excluded, or rendered ineffective by any contractual term, service condition, or unilateral act of a data controller or processor. Any such term or condition shall be void to the

extent that it purports to waive or limit that right.

Acting within its mandate the data expert representative cannot limit the ability for individuals to access their data, and shall refrain from actions that could lead to the direct monetisation of data of the individuals it represents or actions that could deter data holders from fulfilling its obligations under EU law.

3. A physical or electronic version of the mandate and any modification thereof shall be retained by the data expert representative for the duration of their mandate and for a period of five years thereafter and shall be made available to the competent authority upon request.

Or. en

Justification

To allow for data subjects to better control and their data use and negotiate better terms for their data use, we include a specific kind of data intermediation service, being the Data Expert Representative, that can register in the public Union register. This expert works under fiduciary duties to act, represent and advise the data subjects, to collectively negotiate better terms for the data subjects. This approach can be a good addition to the new art 88b of the GDPR as it empowers data subjects and can help improve the conditions of their data use.

Amendment 77

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32f – paragraph 1 – point b

Text proposed by the Commission

(b) the location of the processing and ***the*** objectives of general interest ***for which it permits any processing carried out in a third country***, where the processing is carried out by the recognised data altruism organisation.

Amendment

(b) the location of the processing and objectives of general interest, where the processing is carried out by the recognised data altruism organisation.

Or. en

Justification

Recognised data altruism organisations should process their data exclusively in the EU.

Amendment 78

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32f – paragraph 4 a (new)

Text proposed by the Commission

Amendment

(4a) Recognised data altruism organisations shall publish an annual transparency report describing the categories of data collected, the objectives of general interest pursued, the categories of data users receiving access, any third-country transfers or access, the safeguards applied, the number of withdrawals of consent or permission, information on sources of revenue of the recognised data altruism organisation, in particular all revenue from allowing access to the data, and on expenditure.

Or. en

Justification

Text originating from art. 20(2)(e) DGA and addressing a concern raised by EDPB-EDPS Opinion, para. 141.

Amendment 79

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32g – paragraph 1

Text proposed by the Commission

Amendment

(1) The competent authorities referred to in Article 32b shall, ***either on their own initiative or on a request by a natural or***

(1) The competent authorities referred to in Article 32b shall monitor and supervise whether recognised data

legal person, monitor and supervise whether recognised data intermediation services providers and recognised data altruism organisations comply with the requirements laid down in this Chapter, including whether they continue to comply with the requirements for registration laid down therein.

intermediation services providers and recognised data altruism organisations comply with the requirements laid down in this Chapter, including whether they continue to comply with the requirements for registration laid down therein. ***Those competent authorities may also monitor and supervise the compliance of data intermediation services providers, on the basis of a request by a natural or legal person.***

Or. en

Justification

Changes following EDPB-EDPS opinion, paras. 147 and 148

Amendment 80

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32g – paragraph 5 – subparagraph 1 – point b a (new)

Text proposed by the Commission

Amendment

(ba) a proportionate and dissuasive sanction, in accordance with Article 40 of this Regulation.

Or. en

Amendment 81

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32g a (new)

Text proposed by the Commission

Amendment

Article 32ga

Mandatory complaint handling

A recognised data intermediation services provider or a recognised data altruism organisation shall set up an easily accessible system by which data subjects or data holders can lodge complaints for infringements on the requirements laid down in this Chapter. The recognised data intermediation services provider or a recognised data altruism organisation will have 7 days to confirm the receipt of this complaint and 21 days to provide a reasoned response to the data subjects or data holder that lodged the complaint.

Or. en

Amendment 82

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32i – paragraph 5

Text proposed by the Commission

(5) This Chapter ***builds on, and is without prejudice to***, Union ***and*** national access regimes, in particular with regard to the granting of access to and disclosure of official documents.

Amendment

(5) This Chapter ***does not create any obligation on public sector bodies to allow the re-use of data, nor does it release public sector bodies from their confidentiality obligations under*** Union or national law.

Or. en

Justification

Inserts art. 1(2) of the DGA which provides a clearer drafting.

Amendment 83

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32j – paragraph 1

Text proposed by the Commission

(1) Any applicable conditions for the re-use of data or documents shall be non-discriminatory, transparent, proportionate and objectively justified with regard to the categories of data or documents and the purposes of re-use and the nature of the data or documents for which re-use is allowed. Those conditions shall not be used to restrict competition. This principle shall equally apply for comparable categories of re-use, including for cross-border re-use.

Amendment

(1) Any applicable conditions for the re-use of data or documents shall be non-discriminatory, transparent, proportionate and objectively justified with regard to the categories of data or documents and the purposes of re-use and the nature of the data or documents for which re-use is allowed. Those conditions shall not be used to restrict competition. This principle shall equally apply for comparable categories of re-use, including for cross-border re-use ***within the single market.***

Or. en

Amendment 84

Proposal for a regulation

Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32m – paragraph 1

Text proposed by the Commission

Public sector bodies shall ensure that applicants for re-use of data or documents are informed of available means of redress relating to decisions or practices affecting them.

Amendment

Without prejudice to articles 38 and 39, public sector bodies shall ensure that applicants for re-use of data or documents are informed of available means of redress relating to decisions or practices affecting them. ***Any decision on re-use shall contain a reference to the means of redress where the applicant wishes to challenge the decision.***

Or. en

Justification

To attempt to address concerns of EDPB-EDPS joint opinion, para. 159.

Amendment 85

Proposal for a regulation

Article 1 – paragraph 1 – point 18 a (new)

Regulation (EU) 2023/2854

Article 37– paragraphs 3 a and 3 b (new)

Text proposed by the Commission

Amendment

(18a) In Article 37, the following paragraphs are added:

‘3a. Supervisory authorities competent to enforce Regulation (EU) 2016/679 shall participate in the monitoring of the application of this Regulation on the basis of their competences and tasks under Regulation (EU) 2016/679 to ensure harmonisation and consistency within the single market. Competent authorities under Article 37(1) of this Regulation shall cooperate with supervisory authorities under Regulation (EU) 2016/679 to ensure a consistent application of both Regulations. As part of such cooperation, supervisory authorities competent under Regulation (EU) 2016/679 shall be consulted by the competent authorities under Article 37(1) of this Regulation in relation to Union and national data protection law.

3b. Competent authorities shall cooperate to handle and resolve complaints effectively and in a timely manner, including by exchanging all relevant information by electronic means, including information obtained in the context of enforcement activities, without undue delay. This cooperation shall not affect the cooperation mechanisms provided for by Chapters VI and VII of Regulation (EU) 2016/679 and by Regulation (EU) 2017/2394.’

Or. en

Justification

As per EDPB-EDPS Opinion, para. 164 and reinsertion of art. 38(3) Data Act and explicit

legal basis for data sharing re investigations recommended by EDPB-EDPS Opinion, para. 161.

Amendment 86

Proposal for a regulation

Article 1 – paragraph 1 – point 20

Regulation (EU) 2023/2854

Article 40 – paragraph 6

Text proposed by the Commission

Amendment

20. in Article 40, paragraph (6) is inserted:

deleted

‘6. This Article shall not apply to Chapter VIIc.’

Or. en

Justification

This is a issue of enforceability, if Chapter VIIc contains safeguards but is carved out from sanctions, the safeguards become weaker in practice. The merger of different legal acts in the Data Act must not weaken enforceability or lead to weaker rights and obligations.

Amendment 87

Proposal for a regulation

Article 1 – paragraph 1 – point 22

Regulation (EU) 2023/2854

Article 41a – paragraph 1

Text proposed by the Commission

Amendment

(1) The European Data Innovation Board is established as a means to advising and assisting the Commission in coordinating the enforcement of this Regulation and to serve as a forum of discussion for the development of a European data economy and data policies.

(1) The European Data Innovation Board is established as a means to advising and assisting the Commission in coordinating the enforcement of this Regulation and to serve as a forum of discussion for the development of a European data economy and data policies, ***while respecting the competences and tasks of the European Data Protection Board and supervisory authorities under Regulation (EU) 2016/679.***

Amendment 88**Proposal for a regulation****Article 1 – paragraph 1 – point 22**

Regulation (EU) 2023/2854

Article 41a – paragraph 2

Text proposed by the Commission

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group.

Amendment

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group. ***The European Data Innovation Board shall include structured participation from civil society organisations, consumer organisations, academia, independent technical experts, and representatives of SMEs. Such participation shall ensure balanced representation and shall not affect the independence of competent authorities.***

Amendment 89**Proposal for a regulation****Article 1 – paragraph 1 – point 22**

Regulation (EU) 2023/2854

Article 41a – paragraph 3

Text proposed by the Commission

(3) The Commission shall decide on the composition of the different configurations in which the Board will fulfil its tasks.

Amendment

(3) The Commission, ***upon consultation of the Board***, shall decide on the composition of the different configurations in which the Board will fulfil its tasks.

Or. en

Amendment 90

Proposal for a regulation

Article 1 – paragraph 1 – point 23

Regulation (EU) 2023/2854

Article 42 – paragraph 1 – point c

Text proposed by the Commission

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information;

Amendment

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information, ***in particular by establishing methods for the efficient exchange of information relating to the enforcement of the rights and obligations under this Regulation in cross-border cases, including coordination with regard to the setting of penalties; ;***

Or. en

Justification

Reinsertion of text omitted from art. 42(1) of the current Data Act - recommended by EDPB-EDPS joint opinion, para. 169.

Amendment 91

Proposal for a regulation

Article 1 – paragraph 1 – point 23

Regulation (EU) 2023/2854

Article 42 – paragraph 1 – point d a (new)

Text proposed by the Commission

Amendment

(da) ensuring active cooperation and coordination with other relevant bodies to ensure consistency in the single market.’;

Or. en

Amendment 92

Proposal for a regulation

Article 1 – paragraph 1 – point 26 – point a – point ii – introductory part

Regulation (EU) 2023/2854

Article 49 – point m

Text proposed by the Commission

Amendment

(ii) point (m) **is replaced by** the following:

(ii) **after** point (m) the following **points are added**:

Or. en

Amendment 93

Proposal for a regulation

Article 1 – paragraph 1 – point 26 – point a – point ii

Regulation (EU) 2023/2854

Article 49 – point m

Text proposed by the Commission

Amendment

(m) the impact of this Regulation on SMEs and SMCs with regard to their capacity to innovate and to the availability of data processing services for users in the Union and the burden of complying with new obligations

deleted

Or. en

Amendment 94

Proposal for a regulation

Article 1 – paragraph 1 – point 26 – point a – point ii

Regulation (EU) 2023/2854

Article 49 – point m a (new)

Text proposed by the Commission

Amendment

(ma) ‘(ma) the impact of this Regulation on consumer protection and fundamental rights, including the rights to privacy and the protection of personal data, non-discrimination, access to information, and the effective remedy;

Or. en

Justification

This makes the Commission assess whether the new framework increases concentration, weakens rights, or creates enforcement gaps, following concerns that the proposal assumes data availability creates value without asking who benefits or who loses power.

Amendment 95

Proposal for a regulation

Article 1 – paragraph 1 – point 26 – point a – point ii

Regulation (EU) 2023/2854

Article 49 – point m b (new)

Text proposed by the Commission

Amendment

(mb) the impact of this Regulation on concentration of data access, control, and intermediation power, including the role of undertakings designated as gatekeepers under Regulation (EU) 2022/1925 and very large enterprises;

Or. en

Justification

This makes the Commission assess whether the new framework increases concentration, weakens rights, or creates enforcement gaps, following concerns that the proposal assumes data availability creates value without asking who benefits or who loses power.

Amendment 96

Proposal for a regulation

Article 1 – paragraph 1 – point 26 – point a – point ii

Regulation (EU) 2023/2854

Article 49 – point m c (new)

Text proposed by the Commission

Amendment

(mc) the effectiveness of safeguards for mixed datasets, protected data, and data re-use under Chapter VIIc; (md) the effectiveness of complaint, redress, supervision, and enforcement mechanisms, including cooperation with supervisory authorities established under Regulation (EU) 2016/679.'

Or. en

Justification

This makes the Commission assess whether the new framework increases concentration, weakens rights, or creates enforcement gaps, following concerns that the proposal assumes data availability creates value without asking who benefits or who loses power.

Amendment 97

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – introductory part

Regulation (EU) 2016/679

Article 4

Text proposed by the Commission

Amendment

1. Article 4 *is amended as follows*:

1. *In Article 4 the following points are added*:

Or. en

Amendment 98

Proposal for a regulation

Article 3 – paragraph 1 – point 1 – point a

Text proposed by the Commission

Amendment

(a) in point 1, the following sentences are added: **deleted**

‘Information relating to a natural person is not necessarily personal data for every other person or entity, merely because another entity can identify that natural person. Information shall not be personal for a given entity where that entity cannot identify the natural person to whom the information relates, taking into account the means reasonably likely to be used by that entity. Such information does not become personal for that entity merely because a potential subsequent recipient has means reasonably likely to be used to identify the natural person to whom the information relates.’

Or. en

Justification

Perserving the definition of personal data is essential for the EU's fundamental rights based approach for European consumers.

Amendment 99

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a – introductory part

Regulation (EU) 2016/679

Article 9 – paragraph 2

Text proposed by the Commission

Amendment

(a) in paragraph 2, the following points are added:

(a) in paragraph 2, the following points is added:

Or. en

Amendment 100

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point a

Regulation (EU) 2016/679

Article 9 – paragraph 2 – point k

Text proposed by the Commission

Amendment

(k) processing in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, subject to the conditions referred to in paragraph 5. ***deleted***

Or. en

Justification

Deletion because it would amount to a an "AI privilege" difficult to meet EU principles of necessity and proportionality, affecting the overall level of the protection of consumer's personal data.

Amendment 101

Proposal for a regulation

Article 3 – paragraph 1 – point 3 – point b

Regulation (EU) 2016/679

Article 9 – paragraph 5

Text proposed by the Commission

Amendment

5. For processing referred to in point (k) of paragraph 2, appropriate organisational and technical measures shall be implemented to avoid v the collection and otherwise processing of special categories of personal data. Where, despite the implementation of such measures, the controller identifies special categories of personal data in the datasets used for training, testing or validation or in the AI system or AI model, the controller shall remove such data. If removal of those data requires disproportionate effort, the controller ***deleted***

shall in any event effectively protect without undue delay such data from being used to produce outputs, from being disclosed or otherwise made available to third parties.

Or. en

Justification

Deletion because it would amount to a an "AI privilege" difficult to meet EU principles of necessity and proportionality, affecting the overall level of the protection of consumer's personal data.

Amendment 102

Proposal for a regulation

Article 3 – paragraph 1 – point 4 – introductory part

Regulation (EU) 2016/679

Article 12 – paragraph 5

Text proposed by the Commission

4. In Article 12, paragraph 5 *is replaced by* the following:

Amendment

4. In Article 12, paragraph 5, the following *subparagraphs are inserted*:

Or. en

Amendment 103

Proposal for a regulation

Article 3 – paragraph 1 – point 4

Regulation (EU) 2016/679

Article 12 – paragraph 5 – subparagraph 1 – introductory part

Text proposed by the Commission

5. Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character *or also, for requests under Article 15*

Amendment

5. Information provided under Articles 13 and 14 and any communication and any actions taken under Articles 15 to 22 and 34 shall be provided free of charge. Where requests from a data subject are manifestly unfounded or excessive, in particular because of their repetitive character, the controller may either:

because the data subject abuses the rights conferred by this regulation for purposes other than the protection of their data, the controller may either:

Or. en

Justification

With this amendment the rapporteur is trying to ensure that the exercise of this consumer right is not becoming more difficult.

Amendment 104

Proposal for a regulation

Article 3 – paragraph 1 – point 4

Regulation (EU) 2016/679

Article 12 – paragraph 5 – subparagraph 1 – point a

Text proposed by the Commission

Amendment

(a) charge a reasonable fee taking into account the administrative costs of providing the information or communication or taking the action requested; or *deleted*

Or. en

Justification

With this amendment the rapporteur is trying to ensure that the exercise of this consumer right is not becoming more costly.

Amendment 105

Proposal for a regulation

Article 3 – paragraph 1 – point 4

Regulation (EU) 2016/679

Article 12 – paragraph 5 – subparagraph 1 – point b

Text proposed by the Commission

Amendment

(b) refuse to act on the request. *deleted*

Justification

With this amendment the rapporteur is trying to ensure that the exercise of this consumer right is not becoming more difficult.

Amendment 106**Proposal for a regulation****Article 3 – paragraph 1 – point 4**

Regulation (EU) 2016/679

Article 12 – paragraph 5 – subparagraph 2

*Text proposed by the Commission**Amendment*

The controller shall bear the burden of demonstrating that the request is manifestly unfounded or that there are reasonable grounds to believe that it is excessive.

*deleted***Amendment 107****Proposal for a regulation****Article 3 – paragraph 1 – point 4**

Regulation (EU) 2016/679

Article 12 – paragraph 5

*Text proposed by the Commission**Amendment*

‘The controller shall not engage in any behaviour that undermines the effective exercise of data subjects’ rights provided for in Articles 12 to 22, making the exercise of those rights unduly difficult.

The controller shall not abusively resort to the exceptions under Article 12(5) in a manifestly unfounded or excessive manner, in particular because of the frequency in which it limits the rights of the same or other data subjects, thereby exceeding the limits of what is appropriate

and necessary.'

Or. en

Justification

Inspired by article 13 of the DMA on anti-circumvention to ensure protection against abuse by for example dark patterns, for companies for resorting to the exceptions under Article 12(5).

Amendment 108

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point c

Regulation (EU) 2016/679

Article 33 – paragraph 6

Text proposed by the Commission

6. The Board shall prepare and transmit to the Commission a proposal for a common template for notifying a personal data breach to the competent supervisory authority referred to in paragraph 1 as well as for a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The proposals shall be submitted to the Commission within [OP date = nine months of the entry into application of this Regulation]. The Commission after due consideration reviews it, as necessary, and is empowered to adopt it by way of an implementing act in accordance with the examination procedure set out in Article 93(2).

Amendment

6. The Board shall prepare, **make public** and transmit to the Commission a proposal for a common template for notifying a personal data breach to the competent supervisory authority referred to in paragraph 1 as well as for a list of the circumstances in which a personal data breach is likely to result in a high risk to the rights and freedoms of a natural person. The proposals shall be submitted to the Commission within [OP date = nine months of the entry into application of this Regulation]. The Commission after due consideration reviews it, as necessary, and is empowered to adopt it by way of an implementing act in accordance with the examination procedure set out in Article 93(2).

Or. en

Amendment 109

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point c

Text proposed by the Commission

7. The template and the list referred to in paragraph 6 shall be reviewed at least every three years and updated where necessary. The Board shall submit its assessment and possible proposals for updates to the Commission in due time. The Commission ***after due consideration of the proposals reviews them and is empowered to adopt any updates following the procedure in paragraph 6.***

Amendment

7. The template and the list referred to in paragraph 6 shall be reviewed at least every three years and updated where necessary. The Board shall submit its assessment and possible proposals for updates to the Commission in due time. The Commission ***shall take utmost account of the Board's assessment.***

Or. en

Amendment 110

Proposal for a regulation

Article 3 – paragraph 1 – point 8 – point c

Regulation (EU) 2016/679

Article 33 – paragraph 7 a (new)

Text proposed by the Commission

Amendment

7a. The submission of notifications, reports or other information provided for in this provision shall not reduce or otherwise affect the scope, frequency or level of detail of the reporting obligations laid down in this Regulation or other applicable Union Law. The establishment of a single-entry point in this Article shall serve solely to simplify procedural aspects and guarantee coordination between competent authorities. It shall not result in lowering the level of security, privacy, consumer and data protection nor limit the power of supervisory authorities to request additional information, conduct investigations or require further reporting where necessary to guarantee compliance with the law.'

Or. en

Amendment 111

Proposal for a regulation

Article 3 – paragraph 1 – point 10

Regulation (EU) 2016/679

Article 41a

Text proposed by the Commission

Amendment

10. The following article is added: **deleted**

‘Article 41a

(1) The Commission may adopt implementing acts to specify means and criteria to determine whether data resulting from pseudonymisation no longer constitutes personal data for certain entities.

(2) For the purpose of paragraph 1 the Commission shall:

(a) assess the state of the art of available techniques;

(b) develop criteria and or categories for controllers and recipients to assess the risk of re-identification in relation to typical recipients of data.

(3) The implementation of the means and criteria outlined in an implementing act may be used as an element to demonstrate that data cannot lead to reidentification of the data subjects.

(4) The Commission shall closely involve the EDPB in the preparations of the implementing acts. The EPDB shall issue an opinion on the draft implementing acts within a deadline of 8 weeks as of the receipt of the draft from the Commission.

(5) The Implementing Acts shall be adopted in accordance with the examination procedure referred to in Article 93(3).’

Or. en

Justification

This is the competence of DPAs, not the Commission. Therefore it is not creating simplification, but rather bypassing MS authorities. The EDPB already adopted Guidelines 01/2025 on pseudonymisation. Imp: EDPB flags already that pseudonymisation is a risk-mitigation measure.

Amendment 112

Proposal for a regulation

Article 3 – paragraph 1 – point 11 a (new)

Regulation (EU) 2016/679

Article 58 – paragraph 6 a (new)

Text proposed by the Commission

Amendment

11a. In Article 58, the following paragraph is added:

‘6a. The supervisory authorities’ investigative and corrective powers set out in Article 58(1) and (2) shall apply mutatis mutandis to providers of software to access online interfaces in the context of Article 88b even when they are not processing personal data.’

Or. en

Justification

Supervision of DPAs is extended to providers (e.g. browsers) when implementing automated signal for consumer choices.

Amendment 113

Proposal for a regulation

Article 3 – paragraph 1 – point 14 a (new)

Regulation (EU) 2016/679

Article 83 – paragraph 3 – point e a (new)

Text proposed by the Commission

Amendment

14a. In Article 83(3), the following point is inserted:

‘(ea) non-compliance with Articles 88a

and 88b.'

Or. en

Justification

Amendment to ensure supervision and enforcement of art 88b.

Amendment 114

Proposal for a regulation

Article 3 – paragraph 1 – point 14 b (new)

Regulation (EU) 2016/679

Article 83 – paragraph 9 a (new)

Text proposed by the Commission

Amendment

14b. In Article 83, the following paragraph is added:

'9a. The provisions shall apply mutatis mutandis to providers of software to access online interfaces in the context of Article 88b even when they are not processing personal data.'

Or. en

Justification

Amendment to ensure supervision and enforcement of art 88b.

Amendment 115

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 4 – point b

Text proposed by the Commission

Amendment

(b) if the data subject gives consent, the controller shall not make a new request for consent for the same purpose for the period during which the controller can lawfully rely on the consent of the data subject;

(b) if the data subject gives consent, the controller shall not make a new request for consent for the same purpose for the period during which the controller can lawfully rely on the consent of the data subject. **In**

particular, gatekeepers under Regulation (EU) 2022/1925 should not be allowed to prompt data subjects more than once a year to give consent for the same processing purpose in respect of which they did not give consent or withdrew their consent;

Or. en

Justification

This amendment is inspired on the wording of recital 37 of the DMA.

Amendment 116

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88a – paragraph 4

Text proposed by the Commission

Amendment

In order to prevent unfair commercial practices pursuant to Directive 2005/29/EC, new requests for consent within these periods preclude consent from being validly granted.

Or. en

Justification

With this amendment the rapporteur tries to prevent consent fatigue by reducing the possibility to use dark patterns under consumer law, in particular Directive 2005/29/EC.

Amendment 117

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b – paragraph 4 – subparagraph 1

Text proposed by the Commission

Amendment

(4) The Commission shall, in

(4) **By ... [3 months following the date**

accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for *the interpretation of* machine-readable indications of data subjects' choices.

of entry into force of this Regulation] the Commission shall, in accordance with Article 10(1) of Regulation (EU) 1025/2012, request one or more European standardisation organisations to draft standards for machine-readable indications of data subjects' choices *respecting the requirements under paragraph 1 of this Article, and ensuring a balanced representation of interests, in particular of data subjects, and the effective participation of all relevant stakeholders in the standardisation process in accordance with Articles 5, 6, and 7 of Regulation (EU) No 1025/2012.*

Or. en

Amendment 118

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b – paragraph 6

Text proposed by the Commission

(6) Providers of web browsers, *which are not SMEs*, shall provide the technical means to allow data subjects to give their consent and to refuse a request for consent and exercise the right to object pursuant to Article 21(2) through the automated and machine-readable means referred to in paragraph 1 of this Article, as applied pursuant to *paragraphs 2 to 5 of* this Article.

Amendment

(6) Providers of *software to access online interfaces such as* web browsers, shall provide the technical means to allow data subjects to give their consent and to refuse a request for consent and exercise the right to object pursuant to Article 21(2) through the automated and machine-readable means referred to in paragraph 1 of this Article, as applied pursuant to this Article.

Or. en

Justification

In light of the functioning of the internal market it is important more tech neutral and not only refer to browsers.

Amendment 119

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b – paragraph 6 a (new)

Text proposed by the Commission

Amendment

(6a) Any software to access online interfaces shall allow and actively inform about third party software to display and manage the choices referred to in paragraph 1 of this Article. Software allowing data subjects shall not make the exercise of choices or rights under this Article by data subjects unduly difficult, including by offering choices to the data subject in a non-neutral manner or by subverting or impairing the autonomy, decision-making or choices of the user via the structure, design, function or manner of operation of an online interface or a part thereof.

Or. en

Justification

This amendment is mirroring existing EU law to avoid dark patterns that influence consumers' choices.

Amendment 120

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88b – paragraph 7

Text proposed by the Commission

Amendment

(7) Paragraph 6 shall apply from [OP: please insert the date = **48** months following the date of entry into force of this Regulation].

(7) Paragraph 6 shall apply from [OP: please insert the date = **18** months following the date of entry into force of this Regulation].

Or. en

Amendment 121

Proposal for a regulation

Article 3 – paragraph 1 – point 15

Regulation (EU) 2016/679

Article 88c

Text proposed by the Commission

Amendment

Article 88c

deleted

*Processing in the context of the
development and operation of AI*

Where the processing of personal data is necessary for the interests of the controller in the context of the development and operation of an AI system as defined in Article 3, point (1), of Regulation (EU) 2024/1689 or an AI model, such processing may be pursued for legitimate interests within the meaning of Article 6(1)(f) of Regulation (EU) 2016/679, where appropriate, except where other Union or national laws explicitly require consent, and where such interests are overridden by the interests, or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Any such processing shall be subject to appropriate organisational, technical measures and safeguards for the rights and freedoms of the data subject, such as to ensure respect of data minimisation during the stage of selection of sources and the training and testing of AI an system or AI model, to protect against non-disclosure of residually retained data in the AI system or AI model to ensure enhanced transparency to data subjects and providing data subjects with an unconditional right to object to the processing of their personal data.

Or. en

Amendment 122

Proposal for a regulation

Article 5 – paragraph 1 – point 1

Directive 2002/58/EC

Article 4

Text proposed by the Commission

Amendment

1. *Article 4 is deleted;* *deleted*

Or. en

Amendment 123

Proposal for a regulation

Article 10 – paragraph 1

Regulation 2019/1150/EU

Article 10 – paragraph 1

Text proposed by the Commission

Amendment

1. *Regulation 2019/1150/EU is repealed with effect from [date = entry into application of this Regulation].* *deleted*

Or. en

Justification

The full repeal of the P2B, even with a sunset clause, leaves gaps for protecting business users (SMEs). Instead the Commission should do an impact assessment analysing the exact overlaps with other laws such as the e-commerce Directive, DSA and DMA rather than repealing it in full in this omnibus.

Amendment 124

Proposal for a regulation

Article 10 – paragraph 2

Text proposed by the Commission

Amendment

2. By way of derogation from paragraph 1, the following provisions shall continue to apply until 31 December 2032: *deleted*

- (a) Article 2, point (1);*
- (b) Article 2, point (2);*
- (c) Article 2, point (5);*
- (d) Article 4;*
- (e) Article 11;*
- (f) Article 15.*

Or. en

ANNEX: DECLARATION OF INPUT

Pursuant to Article 8 of Annex I to the Rules of Procedure, the rapporteur for opinion declares that he included in his draft opinion input on matters pertaining to the subject of the file that he received, in the preparation of the draft opinion, from the following interest representatives falling within the scope of the Interinstitutional Agreement on a mandatory transparency register¹, or from the following representatives of public authorities of third countries, including their diplomatic missions and embassies:

1. Interest representatives falling within the scope of the Interinstitutional Agreement on a mandatory transparency register
Audience Measurement Association
Access Partnership
ACCIS
Acte – European Media
Adigital, the Spanish Association for the Digital Economy
ADPA – European Independent Automotive Data Publishers Association
Aerospace, Security & Defence Industries Association of Europe
Alliance Digitale
Apple Inc.
Association for Competitive Technology (ACT)
Axeptio
BEUC
Centre for Democracy and Technology Europe (CDT Europe)
CISCO
CNIL French regulator
Delivery hero
Developers Alliance
Digital Currencies Governance Group (DCGG)
Digital Europe
DOT Europe
Duck Duck Go
EACB cooperative banks
Ebay
EDRI
EFCA - European Federation of Engineering Consultancy Associations
Europe Start-up Nations Alliance (ESNA)
European Alliance for Research Excellence
European Banking Federation
European Broadcasters Union
European Data Protection Supervisor (EDPS) - European Data Protection Board (EDPB)
European Expert Group on Human Rights and Emerging Technologies

¹ Interinstitutional Agreement of 20 May 2021 between the European Parliament, the Council of the European Union and the European Commission on a mandatory transparency register (OJ L 207, 11.6.2021, p. 1, ELI: http://data.europa.eu/eli/agree_interinstit/2021/611/oj).

Fedma and Seldia
FES future of work
FESI - Sporting Goods Industry
German Association for the Digital Economy
German Bar Association
Global Initiative for Digital Empowerment
Google - Alphabet
Hotrec
IAB Europe
IFLA - Libraries
IKEA
Independent Retail Europe
Microsoft
Mistral
Mozilla
News Media Europe
None Of Your Business (NOYB)
Open Minded
Paul Nemitz
Shibsted
The Civil Liberties Union for Europe (Liberties)
Vaunet
Workday
World Federation of Advertisers
ZAW - German advertisers
2. Representatives of public authorities of third countries, including their diplomatic missions and embassies

The list above is drawn up under the exclusive responsibility of the rapporteur for opinion.

Where natural persons are identified in the list by their name, by their function or by both, the rapporteur for opinion declares that he has submitted to the natural persons concerned the European Parliament's Data Protection Notice No 484 (<https://www.europarl.europa.eu/data-protect/index.do>), which sets out the conditions applicable to the processing of their personal data and the rights linked to that processing.